

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 805

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO THE PRACTICE OF DENTAL HYGIENE; AMENDING SECTION 54-902, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE PRACTICE OF DENTAL HYGIENE; REPEALING SECTION 54-904, IDAHO CODE, RELATING TO THE AUTHORIZATION FOR PROCEDURES PERFORMED UNDER GENERAL SUPERVISION BY DENTAL HYGIENISTS; AMENDING CHAPTER 9, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-904, IDAHO CODE, TO PROVIDE AUTHORIZATION FOR DENTAL HYGIENISTS; AMENDING SECTION 54-906, IDAHO CODE, TO REMOVE A PROVISION REGARDING SUPERVISION BY A DENTIST; AMENDING SECTION 54-924, IDAHO CODE, TO PROVIDE FOR LICENSEES AND LICENSURE BY THE BOARD; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-902, Idaho Code, be, and the same is hereby amended to read as follows:

54-902. DEFINITION -- PRACTICE OF DENTAL HYGIENE. The practice of dental hygiene is the doing by one (1) person for a direct or indirect consideration of one (1) or more of the following with respect to the teeth or dental health of another person, namely, cleaning, polishing, removing stains or concretions; performing nonsurgical periodontal therapy; administering prescribed anesthetics or medicaments; applying preventive agents; performing nonsurgical, clinical and laboratory oral diagnostic tests ~~for interpretation by a dentist~~; preparation of ~~preliminary~~ records of oral conditions; and such other dental services ~~as specified by the dentist unless prohibited by the board in its adopted rules within such person's education, training, and experience or as delegated by a supervising dentist.~~

SECTION 2. That Section [54-904](#), Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Chapter 9, Title 54, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 54-904, Idaho Code, and to read as follows:

54-904. AUTHORIZATION FOR DENTAL HYGIENISTS. (1) A dental hygienist is authorized to perform any dental intervention within the individual's education, training, and experience or as delegated by a supervising dentist, including but not limited to:

- (a) Dental hygiene assessment;
- (b) Dental hygiene diagnosis; and
- (c) Treatment planning and implementation in the identification, prevention, and management of oral disease.

(2) A dental hygienist who possesses a current and valid certificate pursuant to section 54-1729, Idaho Code, may obtain and administer any topi-

1 cal pharmacological agent used in the course of treatment for minor and self-
 2 limiting oral diseases.

3 (3) A dental hygienist who practices independently shall refer a pa-
 4 tient to a dentist:

5 (a) For any necessary dental care beyond the individual's education,
 6 training, and experience; or

7 (b) Upon the patient's request.

8 SECTION 4. That Section 54-906, Idaho Code, be, and the same is hereby
 9 amended to read as follows:

10 54-906. UNLAWFUL PRACTICE OF DENTAL HYGIENE. (1) Any person, not a
 11 dentist, who shall practice, or shall in any manner hold himself out to any
 12 other person, or to the public, as qualified or licensed to practice dental
 13 hygiene within the state of Idaho without at the time being a licensed dental
 14 hygienist, or who performs any act, function, or service permitted a dental
 15 hygienist by this act ~~without the supervision of a dentist as specified by~~
 16 ~~the rules of the board~~, shall be guilty of a misdemeanor and upon conviction
 17 shall be fined not less than one hundred dollars (\$100) nor more than three
 18 hundred dollars (\$300), or be imprisoned in the county jail for not less than
 19 thirty (30) days nor more than six (6) months, or both.

20 Each act of practice, or holding out, or representation shall consti-
 21 tute a separate offense.

22 (2) Conviction under the provisions of this section shall not prevent
 23 issuance of an injunction as provided in section 54-933, Idaho Code.

24 SECTION 5. That Section 54-924, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 54-924. OTHER GROUNDS OF REFUSAL, REVOCATION OR SUSPENSION OF DEN-
 27 TISTS -- PROBATION AGREEMENTS. The board may refuse to issue or renew a
 28 dental license or may revoke, suspend, place on probation, reprimand or take
 29 other disciplinary action with respect to a dental license as the board may
 30 deem proper, including administrative penalties not to exceed ten thousand
 31 dollars (\$10,000) per violation and assessment of the costs of disciplinary
 32 proceedings in the event a dentist licensee shall:

33 (1) Intentionally misstate or fail fully to disclose a fact material
 34 to determination of fitness and qualification in an application for licen-
 35 sure to practice dentistry or cheat in an examination to practice dentistry;
 36 or procure a certificate or finding of qualification to practice dentistry
 37 or subsequently a license by false, fraudulent or deceitful means or in any
 38 other name than his own true name; or

39 (2) Practice dentistry under any name other than his own true name ex-
 40 cept as a professional service corporation or professional limited liabil-
 41 ity company or as a limited managed care plan pursuant to chapter 39, title
 42 41, Idaho Code; or

43 (3) Practice or in any manner or by any means or at any place hold out
 44 or represent himself as practicing dentistry in or under the name of, or as
 45 a member, representative, agent or employee of, or in connection with, any
 46 company, association, or corporation, or under any trade, fictitious or
 47 business name except as a professional service corporation or professional

1 limited liability company or as a limited managed care plan pursuant to chap-
 2 ter 39, title 41, Idaho Code, except for:

3 (a) A dentist practicing dentistry and providing dentistry services to
 4 prisoners in the custody of the Idaho department of correction as an em-
 5 ployee of:

6 (i) The state of Idaho;

7 (ii) A contractor under contract as defined by section 67-9203,
 8 Idaho Code, with the state of Idaho; or

9 (iii) A subcontractor for a contractor under contract as defined
 10 by section 67-9203, Idaho Code, with the state of Idaho; or

11 (b) A dentist practicing dentistry as an employee or contracting den-
 12 tist providing dentistry services to any health center as defined and
 13 authorized in section 330 of the public health service act, codified as
 14 amended at 42 U.S.C. 254b; or

15 (4) (a) Make, or cause to be made, or assist in making, any fraudulent,
 16 false, or misleading statement as to his own or an employee's, asso-
 17 ciate's, or other dentist's, dental therapist's, or dental hygienist's
 18 skill or lack of skill, or method of practice; or

19 (b) Claim to practice dentistry without causing pain; or

20 (c) Claim superiority over other dentists; or

21 (d) Publish, advertise, or circulate reports, letters, certificates,
 22 endorsements, or evidence of cures or corrections of dental conditions
 23 by such dentist, his employee, or his associate by reason of his or
 24 their skill, experience, or ability or of his or their use of any system,
 25 method, technique, device, drug, medicine, material, manipulation or
 26 machine; or

27 (e) Advertise the use of, or use, any system, method, technique, de-
 28 vice, drug, medicine, material or machine that is either falsely adver-
 29 tised or misnamed; or

30 (5) Use intoxicants or drugs to such a degree as to render him unfit to
 31 practice; or

32 (6) Commit malpractice, that is, to provide dental care that fails to
 33 meet the standard of dental care provided by other qualified dentists in the
 34 same community or similar communities, taking into account his training, ex-
 35 perience and the degree of expertise to which he holds himself out to the pub-
 36 lic; or

37 (7) Engage in unprofessional conduct, as defined by board rules; or

38 (8) Advertise in such way as to deceive or defraud, or probably deceive
 39 or defraud, the public or patrons; or

40 (9) Employ or permit any person not a dentist to practice dentistry, or
 41 any person not a dentist or dental therapist to practice dental therapy, or
 42 any person not a dentist or dental hygienist to practice dental hygiene, in
 43 his office or under his control or direction; or

44 (10) Fail, neglect or refuse to keep his office or equipment, or oth-
 45 erwise conduct his work, in accordance with current state and federal laws,
 46 rules and regulations; or

47 (11) Violate any other provisions of law or rules adopted by the board;
 48 or

49 (12) Falsely identify himself to the public as a specialist in a spe-
 50 cialty area of dentistry as defined by rule; or

1 (13) Engage in the practice of dentistry as a member, stockholder, em-
 2 ployee, director, partner or proprietor in any business entity in which a
 3 person, not duly licensed ~~to practice dentistry in this state by the board~~
 4 pursuant to this chapter, holds an ownership interest. The provisions of
 5 this subsection shall not apply to:

6 (a) Such engagement in a limited managed care plan pursuant to chapter
 7 39, title 41, Idaho Code;

8 (b) A dentist practicing dentistry and providing dentistry services to
 9 prisoners in the custody of the Idaho department of correction as an em-
 10 ployee of:

11 (i) The state of Idaho;

12 (ii) A contractor under contract as defined by section 67-9203,
 13 Idaho Code, with the state of Idaho; or

14 (iii) A subcontractor for a contractor under contract as defined
 15 by section 67-9203, Idaho Code, with the state of Idaho; or

16 (c) A dentist practicing dentistry for any health care center as de-
 17 fined and authorized in section 330 of the public health service act,
 18 codified as amended at 42 U.S.C. 254b; or

19 (14) Supervise more than three (3) dental therapists; or

20 (15) Require directly, or as a member, representative, contracted
 21 agent, or employee of or in connection with any company, association, corpo-
 22 ration, or partnership, that a patient sign an agreement limiting his right
 23 or ability to file a complaint with the board.

24 SECTION 6. An emergency existing therefor, which emergency is hereby
 25 declared to exist, this act shall be in full force and effect on and after
 26 July 1, 2026.